

3 & 4 GEO. 6. *Ministry of Health* Ch. iv.
Provisional Order Confirmation (Canterbury)
Act, 1940.



CHAPTER iv.

An Act to confirm a provisional order of the
Minister of Health relating to the city of
Canterbury. [21st March 1940.]

WHEREAS under the provisions of the Public 38 & 39 Vict.
Health Act 1875 the Minister of Health has c. 55.
made a provisional order which needs confirmation by
Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The order of the Minister of Health which is Order in
set out in the schedule to this Act is hereby confirmed schedule
and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Canterbury) Act 1940.

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Act, 1940.

SCHEDULE.

CITY OF CANTERBURY.

Provisional order partially repealing a local Act.

5 Geo. 4.
c. cxxxiv.

WHEREAS the mayor aldermen and citizens of the city of Canterbury acting by the council (in this order called "the corporation") are the local authority for the purposes of the Public Health Act 1875 and there are in force in the said city the unrepealed provisions of an Act passed in the fifth year of the reign of King George the Fourth intituled "An Act for erecting
" a Market House for the Sale of Corn Hops and other Agricultural Produce in the City of Canterbury and County of the
" same City for improving and enlarging the Market Places for
" the Sale of Provisions in the said City and County and for
" regulating and maintaining the said Markets" (in this order called "the local Act") as altered by a provisional order (in this order called "the order of 1866") dated the second day of March eighteen hundred and sixty-six which was duly confirmed by Parliament:

And whereas the corporation have applied to the Minister of Health for the issue of a provisional order partially to repeal the local Act:

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

1. This order may be cited as the Canterbury Order 1939 and shall come into operation on the date of the Act of Parliament confirming it.

Partial
repeal of
local Act.

2. So much of the local Act as was not repealed by the order of 1866 is hereby repealed:

Provided that the power of the corporation to levy tolls for the hawking of provisions or other articles of any kind whatever about the city and borough of Canterbury shall be retained.

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3. The markets heretofore maintained by the corporation under the local Act shall be deemed to have been established and provided by the corporation under section 44 (Establishment or acquisition of market by local authority) of the Food and Drugs Act 1938.

Markets deemed to be provided under Food and Drugs Act 1938.
1 & 2 Geo. 6.
c. 56.

Printed by PERCY LUND, HUMPHRIES & Co., LTD.

FOR
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